Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

January 26, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1339 - Demand for settlement

Dear Claims Representative:

Our firm represents James Castillo in connection with the motor vehicle collision that occurred on February 24, 2023. Our client was lawfully turning left at an intersection when your insured's vehicle struck the driver's side of our client's car. The collision was caused by your insured's failure to yield the right of way and to keep a proper lookout, and liability is clear from the facts and the available physical evidence.

As a direct result of the impact, our client suffered a whiplash injury to the neck and upper back. The symptoms have included persistent pain, stiffness, reduced range of motion, and recurring headaches. Our client has received ongoing medical treatment, including physical therapy and diagnostic imaging, and has missed time from work while recovering. Treatment records and billing statements are enclosed.

Under the circumstances, we demand payment of $206,000.00 to resolve all claims arising from this collision. This figure reflects medical expenses incurred to date, lost wages, and compensation for pain and suffering. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we are prepared to file suit without further notice.

Expert review: Anthony Davis, neurologist

Sincerely,

Kyle Sanders
Marshall & Dominguez LLP